

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

ALLISON FRIEDENBERG,

Petitioner

VS.

JASON TROLLOPE,

Respondent

) Case Number: FDI-22-796972

) Hearing Date: May 12, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ENFORCEMENT AND CLARIFICATION OF MARRIAGE
SETTLEMENT AGREEMENT SECTION 6 FINANCIAL RESPONSIBILITY FOR SUMMIT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Allison Friedenberg (hereafter “Petitioner”) and Respondent Jason Trollope (hereafter “Respondent”).
- 2) On 3/23/23, the Court entered Dissolution Judgment attached to and incorporated in which is a Marital Settlement Agreement (MSA). Section 6 of the MSA includes provisions regarding the pet dog, Summit. See Dissolution Judgment file dated 3/24/23.
- 3) On 3/6/26, Respondent filed a Request for Order seeking Judgment enforcement and clarification as follows: (a) enforce Section 6 of the MSA; (b) confirm that Petitioner is financially responsible for Summit’s reasonable health and welfare expenses; (c) reject Petitioner’s assertion that Respondent owes retroactive reimbursement for expenses incurred for Summit; and (d) confirm that modification of Section 6 has not occurred. Respondent asserts that between November 2022 and January 2026, Petitioner reimbursed Respondent for pet food related expenses and acknowledged her financial responsibility and reimbursement practice in attached email

1 communications. Then, in February 2026, Petitioner demanded \$2,006 in retroactive
2 reimbursements for pet food related expenses.

- 3 4) On 4/27/26, Petitioner filed a Responsive Declaration in opposition to Respondent's Request for
4 Order. Petitioner requests the Court enforce the MSA "as written in that [Respondent] pay for all
5 expense listed on pg. 11 which designates what I am to pay and what [Respondent] has to pay."
6 Petitioner requests that the Court order Respondent to reimburse her \$2,006 for pet food related
7 expenses, which she believes was Respondent's financial responsibility. Petitioner asserts that
8 Respondent has not contributed to Summit financially in any form for the past four years;
9 however, the parties share 50/50 custody of the dog, which Petitioner believes is inequitable.
- 10 5) The Court notes there is no Proof of Service on file indicating Petitioner's 4/27/26 Responsive
11 Declaration was served on Respondent.
- 12 6) Respondent did not file a Reply Declaration.

13 **B. Findings and Order**

- 14 1) The Court read and considered the entirety of Section 6 of the MSA, which includes the
15 following pertinent language:
- 16 a. Page 10, subsection a states, "Each party will provide Summit with appropriate food,
17 water, and facilities."
- 18 b. Page 11, paragraph 2 states, "[Petitioner] shall be responsible for all reasonable expenses
19 for the health and welfare, and training of Summit, including fees associated with hiring a
20 dog walker, doggie daycare, or kennel, even during [Respondent]'s custodial time with
21 Summit. Each party shall be responsible for basic care and feeding of Summit while
22 he/she has custody of Summit."
- 23 c. Page 11, paragraph 3 states, "While [Petitioner] shall pay for Summit's expenses,
24 [Respondent] will contribute in-kind with the following responsibilities..." Page 11,
25 paragraph 3, subsection d states, "Food and Medication – [Respondent] will maintain
26 sufficient food, treat and medication supplies, including purchasing said provisions."
- 27 2) Based on the foregoing, and the facts and equities of this case, the Court finds that Respondent is
28 financially responsible for pet food related expenses while Summit is in his care. This includes
29 the purchase of food and treats.

- 3) Financial responsibility for medication is set forth in the last paragraph on page 10 and first paragraph on page 11 of the MSA, which states, “All reasonable medical expenses not covered [by pet insurance] shall be paid by [Petitioner]. However, if [Petitioner] does not believe medical treatment recommended by a veterinarian is warranted or reasonable, [Respondent] may pay for such treatment at his own expense.”
- 4) Based on the foregoing, and the facts and equities of this case, the Court finds that Petitioner is 100% responsible for the cost of medication unless she does not believe such medication is warranted or reasonable because medication qualifies as a medical expense.
- 5) The Court agrees with Petitioner that any other interpretation of the language set forth above would result in inequity given that the parties share custody of Summit 50/50; however, the Court rejects Petitioner’s contention that page 11, paragraph 3, subsections a-f is a list designating the financial responsibilities of Respondent and Petitioner. Rather, the Court finds that this list designates who is responsible for certain care, coordination, and communications.
- 6) Petitioner’s request for \$2,006 in retroactive reimbursements for pet food related expenses is DENIED.
- 7) The Court confirms that there is no modification of Section 6 of the MSA in the Court’s file.
- 8) The Court will prepare the Findings and Order After Hearing.